

RESOLUTION NO. 26051203

RESOLUTION REQUESTING THE BOARDS OF SUPERVISORS OF SANTA CLARA AND SANTA CRUZ COUNTIES TO ESTABLISH TAX RATE FOR BONDS OF WEST VALLEY-MISSION COMMUNITY COLLEGE DISTRICT EXPECTED TO BE SOLD DURING FISCAL YEAR 2026-27, AND AUTHORIZING NECESSARY ACTIONS IN CONNECTION THEREWITH

WHEREAS, this Board of Trustees (the “Board”) of the West Valley-Mission Community College District (the “District”), located in Santa Clara County (the “County”) and Santa Cruz County (together with the County, the “Counties”), California is authorized, and intends, to issue a series of its bonds for purposes authorized by the voters of the District on November 6, 2018 (“Measure W”);

WHEREAS, the Boards of Supervisors of the Counties are required to take action approving a tax rate for payment of indebtedness of the District during Fiscal Year 2026-27, and it is the responsibility of the Auditor-Controller of the respective Counties to calculate the several tax rates for the respective Boards of Supervisors’ action thereon;

WHEREAS, this Board has determined that it is not possible or advisable to sell the District’s bonds in time to permit each of the Auditor-Controllers, or other appropriate officials of the Counties to calculate the tax rates necessary to pay debt service on such bonds in order that such tax rates may be reflected on 2026-27 property tax bills of taxpayers in the District;

WHEREAS, the Education Code of the State of California provides that the Board of Supervisors of each county shall annually, at the time of making the levy of taxes for county purposes, estimate the amount of money required to meet the payment of the principal of and interest on the bonds authorized by the electors of the District and not sold, and which the Board of Trustees of the District informs each such Board of Supervisors in their belief will be sold before the next tax levy, and further provides that said Board of Supervisors shall levy a tax sufficient to pay the principal and interest so estimated; and

WHEREAS, this Board deems it necessary and desirable to issue a series of the District’s bonds during Fiscal Year 2026-27, as authorized by Government Code Section 53506 *et seq.*, and that each of the Counties levy a tax for payment of debt service estimated to come due on such bonds during Fiscal Year 2026-27, and believes that said bonds will be sold during said Fiscal Year.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF TRUSTEES OF WEST VALLEY-MISSION COMMUNITY COLLEGE DISTRICT:

Section 1. Recitals. All of the above recitals are correct.

Section 2. Estimate of Tax Levy. The Chancellor or the Vice Chancellor, Finance and Administration of the District, or such other officer of the District as either authorized officer may designate (each, an “Authorized District Representative”), are hereby authorized and directed to

prepare, or cause Frasca & Associates, LLC and KNN Public Finance, LLC., as co-municipal advisors to the District, to prepare, an estimate of all payments of principal and interest which shall become due on a series of bonds of the District expected to be sold prior to the making of the tax levy for Fiscal Year 2026-27, and to cause the debt service schedule so prepared to be provided to the Boards of Supervisors and the Auditor-Controllers of the Counties and to any other officers of the Counties responsible for preparing the tax levy for bonds of the District and for levying said tax. The District estimates that the sale of its next series of bonds shall be in an estimated aggregate amount of \$300,000,000, an amount within the District's authorized but unissued bond allowance, and shall be issued during Fiscal Year 2026-27.

Section 3. Request to Counties to Levy Tax. The Boards of Supervisors of the Counties are hereby requested, in accordance with Education Code Section 15252-15254, to adopt a tax rate for bonds of the District expected to be sold during Fiscal Year 2026-27, based upon the estimated debt service schedule prepared by officers of the District, and to levy a tax in Fiscal Year 2026-27 on all taxable property in the District sufficient to pay said estimated debt service. The proceeds of such tax shall be deposited into the debt service fund of the District established pursuant to the Education Code for bonds of the District.

Section 4. Application of Tax Proceeds. In the event that the bonds of the District are not sold during Fiscal Year 2026-27, or sold in such amount and on such terms that the proceeds of the tax requested in Section 3 hereof, or any portion thereof, are not required for payment of debt service due on the bonds, or payment of other outstanding bonds of the District payable from the debt service fund of the District, this Board hereby requests that each of the Auditor-Controllers, or other appropriate official of the respective Counties cause the remaining proceeds of the tax to be held in the debt service fund and applied to debt service on outstanding Measure W bonds of the District coming due in Fiscal Year 2026-27.

Section 5. Filing of Resolution. The Secretary to this Board is hereby authorized and directed to file forthwith a certified copy of this Resolution with the Clerk of the respective Boards of Supervisors of the Counties, and to cause copies of this Resolution to be delivered to each of the respective Auditor-Controllers and the Treasurer-Tax Collectors (or equivalent officers) of the Counties.

Section 6. Further Authorization. The President of this Board, the Secretary to this Board, or any Authorized District Representative, shall be and they are hereby authorized and directed to take such additional actions consistent with the intent of this Resolution in connection with the sale of the bonds of the District, which any of them deem necessary and desirable to accomplish the purpose hereof.

Section 7. Effective Date. This resolution shall take effect from and after its adoption.

PASSED AND ADOPTED this 12th day of May, 2026, by the following vote:

AYES:

NOES:

ABSENT:

ABSTENTIONS:

President of the Board of Trustees of the
West Valley-Mission Community College
District

Attest:

Secretary to the Board of Trustees of the
West Valley-Mission Community College District